

5 November 2025

Hon Judith Collins KC
Attorney-General
By email: J.Collins@ministers.govt.nz

Dear Minister Collins

Henry VIII clause in Fast-track Approvals Amendment Bill

We write in relation to the Fast-track Approvals Amendment Bill, currently before the House of Representatives. The Environmental Defence Society (EDS) is concerned about the unconstitutional nature of clause 117A of the Bill, which reads as follows:

117A Order in Council to amend description in Schedule 2

- (1) *The Governor-General may, by Order in Council made on the recommendation of the Minister, amend Schedule 2 to amend—*

 - (a) *the project description of a listed project;*
 - (b) *the description of the approximate geographical location of a listed project.*
- (2) *The Minister must not make the recommendation unless the Minister is satisfied that the scope of the listed project will not be substantially different as a result of the amendment, taking into account—*

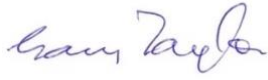
 - (a) *the significant regional or national benefits of the project; and*
 - (b) *the purpose of the project; and*
 - (c) *the location, scale, and nature of the works involved in the project.*
- (3) *To avoid doubt, no new items may be inserted into Schedule 2 by an Order in Council made under this section.*
- (4) *An Order in Council made under this section is secondary legislation (see Part 3 of the Legislation Act 2019 for publication requirements).*

This provision would empower the Minister to recommend an Order in Council that could amend primary legislation (the Fast-track Approvals Act 2024). This amounts to the delegation of Parliament's statute making powers to the Crown (a 'Henry VIII clause'). It would be unconstitutional and set a dangerous precedent, undermining the important principle that only Parliament should be able to change its own laws.

We ask that you direct that clause 117A be struck from the Bill.

We look forward to hearing from you.

Ngā mihi

A handwritten signature in blue ink, appearing to read 'Gary Taylor'.

Gary Taylor CNZM QSO
Chief Executive
Environmental Defence Society